*** FACSIMILE TRANSMISSION ***
FROM: WESTFIELD & CARR LLP TO: HARBORVIEW SECURITIES LLC
PAGES: 3 (INCLUDING COVER) RE: COVENANT WAIVER - PRIOR FACILITY
--- THIS PAGE SCANNED FROM ARCHIVE COPY - IMAGE QUALITY DEGRADED ---
[OCR PROCESSED - CHARACTER RECOGNITION MAY CONTAIN ERRORS]

WAIVER AND CONSENT (ARCHIVE COPY)

Reference is made to the credit facility described below. The Administrative Agent, at the request of the Borrower, waived the covenant compliance requirement for the period stated, on the terms set out herein.

1. The waiver relates solely to the period identified and does not extend to any subsequent period.

2. The waiver does not constitute an amendment of any covenant level, nor a waiver of any other provision.

3. Capitalised terms used herein have the meanings given in the facility documents.

SCHEDULE A - SUMMARY OF WORKING CAPITAL TERMS AS THEN IN EFFECT

The following summary was prepared for the Agent's file. It is a summary only. The operative provisions are those of the executed agreement.

Item	Amount / Term	Source
Target working capital (peg)	28,400,000.00	Executed agreement
Collar / dead band	7,500,000.00	Executed agreement
Adjustment mechanic	Full difference once collar exceeded	Executed agreement
Measurement date	Closing	Executed agreement

--- SCAN ARTIFACT NOTE ---

Th1s page was recovered from a degraded archive image. Nurneric characters in Schedule A were reconstructed by character recognition and have not been proofread against the executed agreement. Where this summary differs from the executed agreement, the executed agreement governs.

SCHEDULE B - COVENANT LEVELS AS THEN IN EFFECT

The following levels applied under the prior facility. They are reproduced for the Agent's file and have no application to any successor facility.

Test	Level	Frequency
Total net leverage	See executed agreement	Quarterly
Interest coverage	See executed agreement	Quarterly
Fixed charge coverage	See executed agreement	Quarterly
Capital expenditure	See executed agreement	Annual

PAGE 3 - CORRESPONDENCE ATTACHED TO ARCHIVE COPY

6. Conditions to effectiveness. This waiver became effective upon receipt by the Administrative Agent of counterpart signatures from Lenders constituting the Required Lenders, together with payment of the fee referred to in paragraph 7.

7. Fee. The Borrower paid an amendment fee to each consenting Lender in the amount agreed separately. The fee is not an adjustment to any covenant level.

8. Representations. The Borrower represented that no default other than the waived matter had occurred and was continuing as at the date of the waiver.

9. Reservation of rights. The Administrative Agent and the Lenders reserved all rights in respect of any matter other than the waived matter, and the waiver did not establish a course of dealing.

10. Effect on subsequent transactions. Nothing in this waiver was intended to affect the terms on which any subsequent facility might be made available, and no summary contained in the Schedules hereto should be treated as evidence of the terms of any subsequent agreement.

11. Entire agreement. This waiver, together with the facility documents, constituted the entire agreement between the parties in respect of the waived matter.

12. Notices. Notices were to be delivered to the addresses set out in the facility documents.

13. Severability. If any provision of this waiver was held unenforceable, the remaining provisions continued in effect.

14. Counterparts. This waiver may be executed in counterparts, each of which is an original.

15. Governing law. This waiver is governed by the laws of the State of New York.

PAGE 3 (CONTINUED) - AGENT FILE ANNOTATIONS

The following annotations were made in manuscript on the archive copy and have been transcribed by the imaging operator. Manuscript transcription carries lower confidence than printed text.

Annotation 1: 'Summary in Sched A prepared by junior - check against executed doc before use.'

Annotation 2: 'Collar figure looks high vs my note - confirm.'

Annotation 3: 'Waiver period only - does not change the mechanic.'

The imaging operator was unable to determine the author of the annotations or the date on which they were made. No further correspondence was attached to the archive copy.

Recipients are reminded that this facsimile is a historical record of a waiver granted under a prior facility. It is retained for the file only. Any figure required for a current transaction should be taken from the operative executed

agreement, which governs in the event of any discrepancy with a summary reproduced here.

--- ARCHIVE RETRIEVAL NOTE ---

This document was retrieved from microfilm and re-imaged. The imaging operator recorded that page 2 exhibited bleed-through from the reverse face and that numeric fields on that page carry reduced confidence. No proofreading against source documents was performed at the time of retrieval. Users requiring an operative figure should obtain it from the executed agreement rather than from this copy.

--- END OF TRANSMISSION ---